

Trustee's Sale and Order to Show Cause re Preliminary Injunction. Plaintiff indicated the sale date was February 2, 2026. The Temporary Restraining Order was denied and the OSC was set for hearing March 5, 2026.

Plaintiff has filed no further documents. Plaintiff has filed no proof of service of the summons, complaint, or the Order to Show Cause. Cal. Rules of Ct. 3.110; 3.1151. All the Court has received is a Notice of Non-Monetary Status of Defendant Fortra Law, the trustee under the deed of trust. Additionally, the proposed sale date has passed without any indication of its outcome.

As the Plaintiff has failed to demonstrate compliance with obligations, the Motion is **denied**. The Initial Case Management Conference date is set for June 9.

16. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: ORDER FOR PAYMENT OF EXPENSES**
FILED BY:
TENTATIVE RULING:
Taken off calendar.

17. 9:00 AM CASE NUMBER: MSC22-00088
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE OF TAX COSTS (CONTINUED FROM 12.18.2025)**
FILED BY:
TENTATIVE RULING:

Plaintiff Alicia Kalamas moves to strike, or in the alternative, tax costs. Defendant John Muir Health prevailed at a trial held before a referee appointed pursuant to Code of Civil Procedure section 638. The issues at trial concerned the circumstances of her termination as an employee.

The party filing the cost memorandum bears the initial burden of showing that the statute allows the item and is proper on its face. (*Ladas v. California Sate Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-776.) For items that are expressly permitted by statute, the burden is on the objecting party to establish that the costs were not necessary or reasonable, based on evidence. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) For items that are not expressly allowed, the burden of proof is on the party claiming them to show that they were reasonable and necessary. (*Foothill-DeAnza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

Plaintiff's arguments are addressed as follows:

Validity of the Verification

Plaintiff contends that the required verification is inadequate, because the signer lacks personal knowledge of the necessity for the items, including a stipulation concerning JAMS costs. This does not render the verification facially inadequate. It may render the costs nonrecoverable, but each category will be addressed on their merits in turn.

Expert Fees

Plaintiff raises a number of issues concerning fees associated with expert witnesses.

CCP 998

Plaintiff generally contests defendant's request for expert witness fees. Code of Civil Procedure section 1033.5(b)(1) provides that "fees of experts not ordered by the court" are "not allowable as costs, except when expressly authorized by law[.]" Code of Civil Procedure section 998 constitutes such an exception, providing that if "an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover his or her post offer costs and shall pay the defendant's costs *from the time of the offer*. In addition . . . the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover *post offer* costs of the services of expert witnesses." (CCP § 998(c)[emphasis added].) In this instance, defendant served a section 998 offer, which offered to settle for \$1 million plus attorney's fees to be determined. Plaintiff did not accept the offer, and defendants prevailed. As to expert fees, the statute clearly limits recovery to "post offer" fees.

Plaintiff contends that the costs are not broken down between pre- and post-CCP 998 offers. Plaintiff correctly points out that Defendant did not break down the expert fees into pre- and post-CCP 998 expert costs. Absent such an allocation, they are not recoverable.

Plaintiff also contends that expert fees are not recoverable at all, on the ground that the CCP 998 offer was not a good faith offer. To allow an award of post-offer expert witness fees and costs, the section 998 offer "must be realistically reasonable in the circumstances of the particular case." Normally a token or nominal offer will not satisfy the good faith requirement, unless it is absolutely clear that no reasonable possibility exists that the defendant will be held liable. (*Wear v. Calderon* (1981) 121 Cal.App.3d 818, 821.) Plaintiff contends that the offer was not reasonable, because much of the goal here was to obtain injunctive relief, not money, thus an offer including no injunctive relief was not reasonable. Examining the complaint, the prayer for relief contained no request for injunctive relief (other than a standard "such other and further relief as the Court deems proper" clause). At no point in the case did plaintiff seek injunctive relief by motion. Thus, whatever subjective motivation plaintiff may have had, the lack of other relief did not render the offer *unreasonable* or in bad faith. The amount of the offer was clearly reasonable. Under the circumstances of this case, the offer was in good faith.

Hourly rate

As to some experts, plaintiff challenges the hourly rate. This challenge is untimely, pursuant to Code of Civil Procedure section 2034.470. As that provision sets out, the contest to expert fees is appropriate after designation of the expert and prior to their deposition. We are well past that moment.

Dr. Rosenstein

Plaintiff disputes the expenses for expert Dr. Rosenstein, contending that he testified that plaintiff was a "disruptive physician," but that the Referee expressly found that she was not. She further argues that his testimony, and therefore his expenses, were not reasonably necessary to the case.

But “reasonably necessary” cannot be viewed based solely on whether the testimony of the witness in question was ultimately material to the result or was credited by the trier of fact. The Court will decline to strike his fees in their entirety.

Videography Costs

Plaintiff objects to the costs for videography of depositions, as those videos were not utilized during the trial. Videotaping of depositions is specifically allowed, and is reasonable. The decision not to use the videos does not render the pre-deposition determination to engage those services unreasonable.

Witness fees

Plaintiff disputed the amount claimed for witness fees. In light of the reply briefing, it appears that the parties agree that the proper sum is \$280, not the sum requested in the cost memorandum. The Court will therefore authorize that agreed-upon amount.

Testimony of Expert Larkin

The cost memorandum lists the testimony of Expert Larkin as four hours, even though he testified at trial for only 30 minutes. As Plaintiff identifies, this notation is likely an inadvertent duplication of his 3.5 hour deposition. Both are allowable as post-998 costs. Larkin’s remaining non-testimony time of \$8,830.25 is not broken down by pre- and post-998 offer, and therefore cannot be allowed on this showing.

Other Costs

Ordinary Witness Fees

Plaintiff disputes the amounts claimed for ordinary witness fees. In opposition briefing, JMH agrees and has recalculated ordinary witness fees to \$35 per day, plus \$0.20 per miles actually traveled, for each day the witness attended his or her deposition or to testify at the trial. The amounts will be reduced accordingly.

Non-Testifying Experts

Expert fees include those that are “reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration[.]” (C.C.P. § 998(c)(1).) Thus, the code includes non-testifying experts, subject to a determination that their expenses were “reasonably necessary.” It appears, however, that JMH no longer seeks any fees or costs related to experts who did not testify, as it conceded that costs for Ankura and Redgrave are not recoverable. This concession reduces the fees by \$173,068.48.

Third Party Vendor Fees

In its costs memorandum, JMH seeks \$990,951 for “E-Discovery Vendor Costs for Data Collection and Production” without explanation. JMH seeks an additional \$249,722 and \$16,722.11 for “project management fees” relating to e-discovery again without any explanation. As both parties note, paralegal fees are not a cost. (*Science Applications Internat. Corp. v. Sup. Ct*, 39 Cal.App.4th 1095 (1995).) They are recoverable in conjunction with attorney’s fees, which have been denied. What is

unclear is how the e-discovery fees sought arose. On this record, the Court strikes each item.

In addition, the referee's order stated that "Generally, each party shall bear its own costs of producing relevant electronic documents in its possession, custody or control in the format established in this Stipulated Order." Absent some indication in the order that the costs would be recoverable by the prevailing party, they are not allowed.

Court reporter fees.

JMH additionally seeks court reporter fees. These fees—i.e., the daily charge by the court reporter—are expressly allowable under Code of Civil Procedure section 1033.5(11). Transcript fees are not recoverable unless ordered by the Court.¹ It appears from the Karmand Declaration, Exhibit G, that the referee requested a copy of the trial transcript. Defendants must break down these costs into actual court reporter fees, plus the charge for any transcript ordered by the appointed referee for her use. Any other transcript costs will be taxed.

Travel expenses

There was considerable discussion in the briefing relating to the presence of four attorneys at the trial. The issue of attorneys' fees has previously been addressed by the Court. JMH does, however, seek costs for those four out-of-town attorneys. The parties are free to choose out-of-town counsel. Given the availability of counsel in the Bay Area, however, travel from Los Angeles is not reasonably necessary. "Routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation." (*Ladas v. CSAA* (1993) 19 Cal. App.4th 761, 775-776.) The costs relating to travel for out-of-town attorneys will be taxed.

Electronic Discovery-Related Third-Party Vendors

Award of these fees is generally subject to the Court's discretion under *Hooked Media Group v. Apple, Inc.* (2020) 55 Cal.App.5th 323, 353. Defendant did not provide invoices or other documentation of the nature of the expense, purportedly because "Plaintiff does not challenge the amount." (Opposition at 13 n.7.) *Hooked Media*, however makes clear that it is only *certain* e-discovery fees that are permissible. Given Plaintiff's challenge to other fees and citation of *Science Applications*, it should have been reasonably foreseeable that the Court would need to review the specific amounts. Nevertheless, Plaintiff has also raised, in reply, that such costs are prohibited under the April 14, 2023 Referee Order. As this argument was raised in Reply, the Court will deny these fees unless argument is requested and JMH has a substantive and persuasive response.

Barkto LLP

JMH has included substantial costs for Barkto LLP, which Plaintiff disputes. These costs are subject to the same scrutiny as other costs, and the documentation (Karmand Declaration Exhibit H) show that it includes some items, such as travel expenses, that have been disallowed by the Court. JMH must respond to the concerns of Plaintiff and only seek costs that are otherwise permitted, as explained above, to recover Barkto-related costs.

¹ "Ordered by the court" modifies "transcript," not "court reporter."

Referee Fees

While referee fees are not expressly allowed, they are permitted at the discretion of the Court under section 1033.5(c)(2) and (4). The Court declines to allow them, especially in light of the stipulation by Defendant to pay these fees.

The parties are directed to recompute the amount of costs awarded based on the Court's rulings and to submit new contentions **no later than April 8, 2026**. The matter will be continued to **April 23, 2026, 9:00 a.m.**